



TOYOTSU MACHINERY CORPORATION

13FL., Symphony Toyota Bldg., 4-11-27, Meieki, Nakamura-ku, Nagoya, Aichi 450-0002, Japan
TEL. 81-52-558-2804 / FAX. 81-52-569-9161 URL. www.toyotsu-machinery.co.jp/

Proforma Invoice

No. VN-250051(R)

To: TAINAN Textile Co., Ltd.
VIETNAM

Date: March 05, 2026
Dept: Textile Machinery Department
South & West Asia Group

Your Ref. No.:

Q100026P006

In reply to your enquiry of SPARE PARTS FOR TOYOTA RY2 (MFG/NO. 20153)

we have the pleasure of offering you the following on the terms and conditions given below :

Terms of payment : T/T Remittance before two weeks of shipment for full amount on contract.

Time of shipment : Within 1 month after receipt of your order.

Price Basis : CIP Ho Chi Minh in Japanese yen by Air

Destination : Ho Chi Minh, Vietnam

Insurance : To be covered by the Seller.

Validity : This is effective till 4-Apr-26
and thereafter subject to our final confirmation before ordering.

Our Bank : SUMITOMO MITSUI BANKING CORP.
NAGOYA BRANCH
A/C No. 2018074, SWIFT: SMBCJPJT

TOYOTSU MACHINERY CORPORATION

Textile Machinery Department
South & West Asia Group
Group Leader
Sho Sakai

<u>Item</u>	<u>Description</u>	<u>Q'ty.</u>	<u>Unit(JPY)</u>	<u>Amount(JPY)</u>
<u>SPARE PARTS FOR TOYOTA RY2 (MFG/NO. 20153)</u>				
*	Details as per attached sheet	1 LOT	129,000	129,000

CIP Ho Chi Minh in Japanese yen by Air JPY 129,000

<Remark> It shall be deemed that contract would be effective subject to opening L/C or sending T/T remittance.

E. & O.E

- ATTACHED SHEET -
No. VN-250051(R)

ITEM	PARTS NO.(INQUIRY)	PARTS NO.(LATEST)	DESCRIPTION	Q'TY	UNIT PRICE	AMOUNT(JPY)
<u>SPARE PARTS FOR TOYOTA RY2 (MFG/NO. 20153)</u>						
	Your Reference no.	Q100026P006				
9	RD153F0-01	R6102-15021-00	PISTON,GRIPPER 210,230 7,8 70,75G	750 PCS	110	82,500

FOB Japan	JPY 82,500
AIR freight & Insurance	JPY 46,500
CIP Ho Chi Minh in Japanese yen by Air	JPY 129,000

N/W : Approx. 11.0 KGS
G/W : Approx. 15.4 KGS
M'MENT : Approx. 0.0924 M3

**** REMARKS ****

We are offering only parts which can be manufactured based on your inquiry part no.

Item No. 9 :

Target machine is quite old, so supplier cannot guarantee that the parts will fit or function properly.

E.& O.E

TERMS AND CONDITIONS

This Contract is subject to the following terms and conditions, unless otherwise stipulated on the face of this Contract:

1. Binding Terms and Conditions: The only terms which are binding upon Seller are (1) those set out in these terms and conditions or otherwise agreed to in writing by Seller and (2) those, if any, which are imposed by law and which cannot be excluded.

2. Price List: The price list of Seller is not an offer to sell but is an invitation to treat only and Seller reserves the right to accept or reject in its absolute discretion any orders which may be received by it. The prices shown in the price list are subject to alteration without notice. If Seller accepts an order it must supply the Goods at the price shown in the price list current when Seller accepts the order, unless otherwise agreed in writing.

3. Quantity: In case of bulk commodity, quantitative variation customarily recognized in the trade of the relevant merchandise shall be permitted. The quantity specified in the bill(s) of lading or similar documents shall be conclusive evidence of the quantity delivered.

4. Delivery: (1) Delivery within the time specified on the face of this Contract shall be subject to the availability of freight space. The date of the bill(s) of lading or similar documents shall be conclusive evidence of the date of delivery. (2) In case of delivery in installments, each delivery shall be regarded as a separate and independent contract. (3) If Seller is to contract for the carriage of the Goods, all charges and expenses for the loading of the Goods, including demurrage and other damages, which are to be for the account of the charterer under the relevant charter party, shall be borne and paid by Buyer. If Buyer is to contract for the carriage of the Goods, Buyer shall, at its own risk and account, contract with a carrier of good standing and international repute which is experienced in the transportation of goods of the same type as the Goods and shall give Seller shipping instructions at least fourteen (14) days prior to the expected date of delivery. If Buyer fails to make such shipping instructions in time, Seller may, at its sole discretion and for Buyer's risk and account, contract for the carriage of the Goods and make delivery of the Goods. (4) Unless Buyer provides Seller with specific instructions for marking and packing in time for delivery of the Goods, the Goods shall be packed and marked in a manner customary for the particular merchandise, and special arrangements shall be subject to Seller's consent. (5) If a delivery date is specified that date is an estimate only, Seller is not liable for any delay in delivery. (6) If Seller is unable to supply Buyer's total order these terms and conditions continue to apply to the Goods supplied.

5. Payment: (1) Unless otherwise stated on the face of this Contract, payment for the Goods shall be made by telegraphic transfer remittance to the bank account designated by Seller within ten (10) days after the date of this Contract. (2) If payment for the Goods is to be made by letter of credit, Buyer shall establish an irrevocable letter of credit, through a major bank of good international repute acceptable to Seller, immediately after the conclusion of this Contract. Such letter of credit shall be in a form and upon terms satisfactory to Seller for the full amount payable to Seller under this Contract and shall remain valid for at least thirty (30) days after the last delivery date under this Contract. If such letter of credit is not established in accordance with this Contract or is dishonored, Buyer shall, upon Seller's first demand, make full payment to Seller in cash. If the time of delivery is postponed due to any reason whatsoever attributable to Buyer, Buyer shall, at its cost and expense, extend the validity of letter of credit. (3) If Buyer fails to pay for the Goods in accordance with this Contract, Buyer shall pay to Seller, as liquidated damages and not as a penalty which Buyer hereby acknowledges as a reasonable estimation of the damages to be suffered by Seller, overdue interest at the rate of the lower of eighteen percent (18%) per annum or the maximum interest rate permitted by the usury laws of Buyer's country, calculated from the due date for such payment until and including the actual date of payment on the basis of a 360-day year. (4) If Buyer's failure to make payment or otherwise perform its obligations hereunder is reasonably anticipated by Seller, Seller may suspend performance of its obligation hereunder and Buyer shall furnish to Seller, within five (5) days of Seller's demand, adequate assurance satisfactory to Seller for the due performance of this Contract. (5) All bank charges outside Japan, including collection charges and stamp duties, and any charges for consular invoices, if any, shall be for the account of Buyer, provided that confirming commissions shall be for the account of Buyer whether charged within or outside Japan. (6) Time is of the essence in respect of Buyer's obligation to make payment for Goods sold by Seller to Buyer.

6. Returns: Buyer must not return any Goods which Buyer's claims are not in accordance with this Contract (whether or not the Goods are treated as accepted by Buyer) unless Seller has first given its written approval to their return. Their return must then be with freight and cartage prepaid by Buyer. If Seller has given its written approval to the return of Goods treated as accepted under this Contract, Seller will only give credit for the Goods returned if they are in a saleable condition.

7. Import and Export Requirements/Approvals: Unless otherwise agreed in writing, Buyer shall obtain all approvals necessary for the performance of this Contract including, without limitation, compliance with any requirements for the importation of the Goods, and provide Seller with originals (or true and correct copies) of all such approval documents upon Seller's request. Buyer shall not export, directly or indirectly, the Goods, or any portion of them in any form, to any country or person for which laws or regulations of Japan or elsewhere require an export license or other governmental approval without first obtaining such license or approval. Buyer shall indemnify and hold Seller harmless from and against any losses, damages, penalties or causes of action resulting from any violation of this Paragraph 7.

8. Insurance: (1) The Goods supplied by Seller to Buyer are at Buyer's risk immediately on delivery to Buyer or into Buyer's custody (whichever is the sooner). Buyer must insure the Goods at its costs from delivery of the Goods until they are paid for in full against such risks as it thinks appropriate and note the interest of Seller on the policy and produce a certificate to this effect to Seller on request. (2) If Seller is to obtain marine or other cargo insurance, Seller shall insure the Goods for a value of one hundred ten percent (110%) of the invoiced amount. (3) If political or war risk insurance is deemed necessary by Seller or Buyer, such insurance shall be obtained at the cost of Buyer.

9. Retention of title: Title in the Goods supplied by Seller to Buyer does not pass to Buyer until (1) the money owing for those Goods; and (2) any other money owing by Buyer to Seller, has been paid (whether or not the Goods are delivered at different times, are the subject of separate invoices or, after delivery, may be determined by Seller to be the subject of a specific invoice).

10. Obligations and Rights of Buyer: Until the Goods have been paid for in full, Buyer: (1) must properly store and protect the Goods including storing them separately and in a manner that clearly identifies them as the property of Seller; (2) must not sell the Goods, other than in the ordinary course of its business; (3) may use the Goods in a manufacturing or construction process of its own or a third party in the ordinary course of business; (4) must not sell, assign, charge or otherwise encumber or grant any interest over any debts and other obligations which any third party may owe to Buyer as a result of the use, manufacture or resale of the Goods.

11. Insolvency: If Buyer faces a court order for payment or judgment for an amount exceeding \$10,000, enters into a scheme or compromise with its creditors, suspends payment of its debts, enters into liquidation proceedings, has a receiver appointed over any of its assets or is declared bankrupt by a court of law, then (1) Buyer's right to sell the Goods in the ordinary course of business and any other rights of Buyer in respect of the Goods immediately cease; and (2) Buyer must immediately return to Seller the Goods in which title has not passed.

12. Increased Costs: Any new, additional or increased freight rates, surcharges, taxes, custom duties or other governmental charges incurred by Seller with respect to the Goods after the conclusion of this Contract shall be for the account of Buyer and shall be reimbursed to Seller by Buyer on Seller's first demand.

13. Force Majeure: If Seller's performance of its obligations hereunder is affected or prevented by force majeure, directly or indirectly affecting the activities of Seller or any person or entity connected with the sale, manufacture, supply or delivery of the Goods including, without limitation, act of God, flood, typhoon, earthquake, tidal wave, landslide, fire, plague, epidemic, quarantine restriction, perils of the sea, war (declared or not) or threat of the same, terrorism, civil commotion, blockade, request, guidance, regulations, restrictions or order of any governmental or quasi-governmental

authority, embargo, requisition of vessel or aircraft, strike, lockout, sabotage or other labor dispute, explosion, accident or breakdown in whole or in part of machinery, plant, transportation or loading facility, unavailability of transportation or loading facility, shortage of energy including electricity, shortage of raw materials, bankruptcy or insolvency of the manufacturer or supplier of the Goods, or any other circumstances beyond the reasonable control of Seller or affected parties, then Seller shall not be liable for failure or delay in performing its obligations under this Contract and may, at its sole discretion, extend the time of delivery for the Goods or terminate unconditionally and without liability the unfulfilled portion of this Contract to the extent so affected or prevented.

14. Warranty: TO THE FULLEST EXTENT PERMITTED BY LAW AND UNLESS OTHERWISE EXPRESSLY STIPULATED ON THE FACE OF THIS CONTRACT, SELLER MAKES NO WARRANTY, OR REPRESENTATION, EXPRESSLY OR IMPLIEDLY, WITH RESPECT TO THE GOODS SOLD HEREUNDER WHETHER OR NOT MANUFACTURED BY IT. SELLER EXPRESSLY AND SPECIFICALLY DISCLAIMS THE IMPLIED WARRANTY OF MERCHANTABILITY AND FITNESS OF THE GOODS SOLD HEREUNDER FOR ANY PARTICULAR PURPOSE OR USE AND ANY OTHER WARRANTY OR CONDITION IMPLIED BY LAW. If any warranty is mandatory under the applicable law, Seller's liability shall be limited to, at Seller's option, the refund, replacement or repair of the defective Goods. Buyer acknowledges that Buyer does not rely and it is unreasonable for Buyer to rely on the skill or judgment of Seller as to whether the Goods supplied are reasonably fit for any purpose for which they are being acquired. Seller has no liability (including liability in negligence) to any person for: (1) any loss or damage, consequential or otherwise, suffered or incurred by that person in relation to the Goods or advice, recommendations, information or services

15. Testing: Since Seller has no control over the conditions under which the Goods are applied, used, stored, transported or handled Buyer is advised to test the Goods thoroughly before adapting them to its own use

16. Claims and Acceptance: Buyer must inspect the Goods immediately upon delivery. Any claim about any defect or non-conformity of the Goods shall be made in writing immediately after such defect or non-conformity is found or should be found but in any case no later than thirty (30) days (or seven (7) days in the event of perishable goods) after the arrival of the Goods at the destination, containing full particulars with the evidence certified by an inspector or surveyor with good international repute acceptable to Seller. Failure of Buyer to make a written claim as set forth above shall constitute an unqualified acceptance of such Goods and waiver of all claims in respect of such Goods by Buyer to the extent not prohibited by applicable law, and Buyer must pay for such Goods in accordance with these terms and conditions. Seller shall not be liable, whether in contract, tort or on any other basis, to Buyer or any third party (including customers) for any special, incidental, consequential, indirect or punitive damages, including without limitation loss of profit, loss of business, depletion of goodwill and similar loss, and in no event shall Seller's total liability under this Contract exceed the price of such Goods. Buyer shall not be entitled, by reason of any set-off, counterclaim or abatement or any other similar deduction, to withhold or reduce any amount due to Seller under this Contract.

17. Compliance: Buyer shall comply with any and all applicable codes, laws, statutes, ordinances, rules, regulations, standards and orders (including, without limitation, any anti-corruption related regulation, such as latest versions of the US Foreign Corrupt Practices Act 1977, the Japanese Unfair Competition Prevention Act 1993 and the UK Bribery Act 2010, and any competition law and anti-trust law).

18. Indemnity and Intellectual Property Rights: Buyer shall defend, indemnify and hold harmless Seller and its directors, officers, employees, agents, suppliers and/or manufacturers of the Goods, regardless of any negligence on the part of Seller, from and against any liability, loss, damage, penalty, cost, expense or disbursement (including attorney's fees) or personal injury, death or property damage as a result of any claim or dispute caused by or relating in any way to the Goods or any infringement of any patent, trademark, utility model, design, pattern, copyright or any other intellectual property rights in the Goods, whether in Japan or elsewhere, which indemnity shall survive the termination of this Contract. Nothing herein contained shall be construed as transferring any patent, trademark, utility model, design, pattern, copyright or any other intellectual property rights in the Goods, all such rights being expressly reserved to the true and lawful owners thereof.

19. Default: Seller may, by written notice to Buyer, forthwith (i) demand immediate payment of all sums payable by Buyer under this Contract whereupon the same shall become immediately due and payable, (ii) set off any sums due and payable by Seller to Buyer against the sums due and payable by Buyer to Seller, (iii) unconditionally terminate this Contract or any part thereof, (iv) delay or suspend any delivery of the Goods or stop the Goods in transit, (v) dispose of the Goods and/or (vi) hold the Goods for Buyer's risk and account, if any one of the following occurs: (a) Buyer fails to pay any sums due and payable under this Contract; (b) Buyer is in breach of or fails to perform any provision of this Contract; (c) Buyer becomes unable to pay its debts generally as they become due; (d) Buyer holds a meeting of creditors or makes a general assignment for the benefit of its creditors; (e) proceedings in insolvency, bankruptcy, corporate reorganization, composition, winding up or any other similar procedure is initiated (or threatened) by or against Buyer; (f) a trustee, receiver or liquidator is appointed over all or material part of Buyer's assets or business; (g) Buyer disposes all or material part of its assets or business to a third party by merger, amalgamation, agreement, order of court or otherwise, or ceases to do business; or (h) Buyer, any of its officers, directors, representatives, employees or agents is a member of or is involved with facilitating the activities of antisocial forces and organizations that pose a threat to the order or safety of civil society. The rights and remedies of Seller hereunder are in addition to Seller's rights and remedies available at law or in equity or otherwise.

20. Governing Law: The trade terms used in this Contract shall be interpreted in accordance with INCOTERMS 2000 (as amended) published by the International Chamber of Commerce. In all other respects, this Contract shall be governed by and construed in accordance with the laws of Japan. Buyer and Seller agree that this Contract is not governed by the United Nations Convention on Contracts for the International Sale of Goods.

21. Arbitration: All disputes, controversies, or differences which may arise between the parties hereto, out of or in relation to or in connection with this Contract, shall be finally settled by arbitration in Tokyo, Japan in accordance with the Commercial Arbitration Rules of the Japan Commercial Arbitration Association. The arbitration award shall be final and binding upon the parties hereto and shall be enforceable in any court or tribunal of competent jurisdiction.

22. No Assignment: Buyer may not assign, delegate or transfer any of its rights or obligations under this Contract without the prior written consent of Seller.

23. No Waiver: The failure of Seller at any time to require full performance by Buyer of the terms hereof shall not affect the right of Seller to enforce the same. The waiver by Seller of any breach of any provision of this Contract shall not be construed as a waiver of that provision itself or any subsequent breach of any provision.

24. Severability: If any of the provisions of this Contract, or any portion thereof, is found to be illegal, invalid or unenforceable by any court or arbitrator of competent jurisdiction, the remainder of this Contract shall nevertheless remain in full force and effect and the illegal, invalid or unenforceable provision shall be deemed to be modified, to the extent possible, to conform to the intent of Buyer and Seller.

25. Entire Agreement: This Contract constitutes the entire agreement between Buyer and Seller and supersedes all prior or contemporaneous communications, agreements or undertakings regarding the subject matter hereof. This Contract may not be amended or terminated nor may any right be waived except in writing signed by duly authorized representative of the party against whom enforcement of such amendment, termination or waiver is sought.